

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of January 15, 2024 ("Effective Date"), by and between Apex Technologies Inc., a Delaware corporation with its principal place of business at 100 Innovation Drive, San Francisco, CA 94105 ("Disclosing Party"), and Orion Analytics LLC, a limited liability company organized under the laws of New York, with its principal place of business at 200 Data Boulevard, New York, NY 10001 ("Receiving Party"). Each party is referred to individually as a "Party" and collectively as the "Parties".

1. PURPOSE

The Parties wish to explore a potential business relationship related to the development of artificial intelligence-based analytics solutions (the "Purpose"). In connection with this Purpose, each Party may disclose to the other certain confidential and proprietary information. The Parties desire to protect such information from unauthorized use or disclosure in accordance with the terms set forth herein.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information, in any form or medium (written, oral, electronic, or otherwise), disclosed by the Disclosing Party to the Receiving Party in connection with the Purpose, including without limitation: (a) trade secrets, inventions, and know-how; (b) financial information, projections, and business plans; (c) customer lists, supplier information, and marketing strategies; (d) technical data, algorithms, source code, and software; and (e) any other information that a reasonable person would consider confidential under the circumstances. Confidential Information does not include information that: (i) is or becomes publicly available through no fault of the Receiving Party; (ii) was already known to the Receiving Party prior to disclosure; (iii) is independently developed by the Receiving Party without use of the Disclosing Party's Confidential Information; or (iv) is required to be disclosed by applicable law or court order, provided the Receiving Party gives prompt written notice to the Disclosing Party and cooperates in seeking a protective order.

3. OBLIGATIONS OF RECEIVING PARTY

The Receiving Party agrees to: (a) hold all Confidential Information in strict confidence using at least the same degree of care it uses to protect its own confidential information, but no less than reasonable care; (b) not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) use the Confidential Information solely for the Purpose; (d) limit access to the Confidential Information to its employees, officers, directors, attorneys, accountants, and financial advisors (collectively, "Representatives") who have a need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those contained herein; (e) promptly notify the Disclosing Party upon becoming aware of any unauthorized use or disclosure of Confidential Information.

4. TERM AND TERMINATION

This Agreement shall commence on the Effective Date and shall continue for a period of three (3) years, unless earlier terminated by either Party upon thirty (30) days' written notice to the other Party. The obligations of confidentiality set forth herein shall survive termination or expiration of this Agreement for an additional period of five (5) years. Upon termination, or upon the written request of the Disclosing Party, the Receiving Party shall promptly destroy or return all materials containing Confidential Information and certify in writing that it has done so.

5. INTELLECTUAL PROPERTY

Nothing in this Agreement shall be construed to grant the Receiving Party any license, right, title, or interest in or to the Confidential Information or any intellectual property rights of the Disclosing Party. All Confidential Information remains the sole and exclusive property of the Disclosing Party. Any inventions, improvements, or derivative works created by the Receiving Party based on or derived from the Confidential Information shall be considered work-for-hire owned exclusively by the Disclosing Party, or if not so considered, shall be irrevocably assigned to the Disclosing Party.

6. INDEMNIFICATION

The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party and its officers, directors, employees, agents, successors, and assigns (collectively, "Indemnified Parties") from and against any and all claims, actions, suits, proceedings, losses, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) any breach of this Agreement by the Receiving Party or its Representatives; (b) any unauthorized use or disclosure of Confidential Information by the Receiving Party or its Representatives; or (c) the gross negligence or willful misconduct of the Receiving Party. The Disclosing Party shall promptly notify the Receiving Party of any claim for which indemnification is sought and shall cooperate reasonably in the defense of such claim.

7. LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, LOSS OF DATA, OR LOSS OF GOODWILL, ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE TOTAL CUMULATIVE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF: (A) THE TOTAL FEES PAID BY THE RECEIVING PARTY TO THE DISCLOSING PARTY UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM; OR (B) ONE THOUSAND DOLLARS (\$1,000).

8. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, shall first be submitted to non-binding mediation in San Francisco, California. If mediation fails within sixty (60) days, the dispute shall be resolved by binding arbitration under the rules of the American Arbitration Association. The parties consent to the exclusive jurisdiction of the state and federal courts located in Delaware for enforcement of any arbitration award.

9. GENERAL PROVISIONS

9.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements, representations, and understandings. 9.2 Amendments. This Agreement may not be amended except by a written instrument signed by authorized representatives of both Parties. 9.3 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing. 9.4 Severability. If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect. 9.5 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original. 9.6 Electronic Signatures. Electronic signatures shall be deemed valid and binding to the same extent as original signatures.

10. SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Non-Disclosure Agreement as of the Effective Date written above.

APEX TECHNOLOGIES INC.

By: _____

Name: Sarah J. Mitchell

Title: Chief Executive Officer

Date: January 15, 2024

ORION ANALYTICS LLC

By: _____

Name: David R. Chen

Title: Managing Partner

Date: January 15, 2024